

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
KEVIN CARLTON,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, CAPTAIN KENNETH GORMAN, POLICE OFFICER JASON LEE, TAX ID 958804, POLICE OFFICER SINGH, TAX ID 967342, POLICE OFFICER GILL, AND SGT. JAMES DOE, POLICE OFFICERS JOHN DOE AND JIM DOE (FICTITIOUS NAMES BECAUSE THEIR IDENTITIES ARE UNKNOWN), ALL OFFICERS BELIEVED TO BE FROM THE NYPD TRANSIT BUREAU DISTRICT 1, BEING SUED AS POLICE OFFICERS AND IN THEIR INDIVIDUAL CAPACITIES,

Defendants.
-----X

To the above-named Defendant(s):

SUMMONS

Index No.:

Date Purchased:

Plaintiff designates New York County as the place of trial.

The basis of venue is New York County is the place where the cause of action arose.

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons, exclusive of the day of service (30) days after the service is complete if the summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
August 13, 2021


ROYCE RUSSELL, ESQ.
R-SQUARE, ESQ. PLLC.
Attorneys for the Plaintiff
112 West 34TH Street #18 Fl.
New York, New York 10120
(718) 785-8890

Defendants' addresses:

City of New York
Office of the Corporation Counsel
100 Church Street, 4th floor
New York, New York 10007

New York City Police Department
One Police Plaza
New York, N.Y. 10007

Captain Kenneth Gorman
c/o NYPD Transit Bureau District 1
59th Street/Columbus Circle Subway Station
New York, NY 10019

Police Officer Jason Lee
Tax ID 958804
c/o NYPD Transit Bureau District 1
59th Street/Columbus Circle Subway Station
New York, NY 10019

Police Officer Singh
Tax ID 967342
c/o NYPD Transit Bureau District 1
59th Street/Columbus Circle Subway Station
New York, NY 10019

Police Officer Gill
c/o NYPD Transit Bureau District 1
59th Street/Columbus Circle Subway Station
New York, NY 10019

Sgt. James Doe
Identity & Address Unknown

Police Officers John Doe
Identity & Address Unknown

Police Officer Jim Doe
Identity & Address Unknown

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
KEVIN CARLTON,

Plaintiff,

VERIFIED COMPLAINT

Index #

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, CAPTAIN KENNETH GORMAN, POLICE OFFICER JASON LEE, TAX ID 958804, POLICE OFFICER SINGH, TAX ID 967342, POLICE OFFICER GILL, AND SGT. JAMES DOE, POLICE OFFICERS JOHN DOE AND JIM DOE (FICTITIOUS NAMES BECAUSE THEIR IDENTITIES ARE UNKNOWN), ALL OFFICERS BELIEVED TO BE FROM THE NYPD TRANSIT BUREAU DISTRICT 1, BEING SUED AS POLICE OFFICERS AND IN THEIR INDIVIDUAL CAPACITIES,

Defendants.

-----X

Plaintiff, Kevin Carlton, by his attorney, R-SQUARE, ESQ., PLLC., complaining of the defendants, respectfully alleges as follows:

PRELIMINARY STATEMENT/ NATURE OF CLAIMS

1. Plaintiff brings this action for compensatory damages, punitive damages and attorney's fee pursuant Article I Section 11 of the New York State Constitution for denial of Equal Protection and redress for tortuous conduct against the Plaintiff by the Defendants through False Arrest, Battery, Abuse of Power and Authority, Excess Force; Conspiracy, Malicious Prosecution and Prima Facie Tort.
2. Additionally, Plaintiff brings this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. §§1981, 1983 and 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitution of the State of New York and the United States as well as State Law claims articulated herein.

3. Plaintiff seeks redress pursuant to 42 U.S.C. §1983 and 1988, et. seg, for violation of his rights secured by the First, Fourth, Sixth and Eight Amendments and Due Process clause of the Fourteenth Amendment of the United States Constitution.

JURISDICTION AND VENUE

4. Jurisdiction and Venue is appropriate given the incident arose in New York County within the State of New York.

JURY TRIAL DEMANDED

5. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant State Law and Fed. R. Civ. P.38 (b). Plaintiff seeks both compensatory and punitive damages, affirmative and equitable relief, an award of costs, interest, and attorney's fees and seek other further relief as this Court deems equitable and just.

PARTIES

6. Plaintiff, Kevin Carlton, is an African American male, currently residing at 2194 Schenectady Avenue, Brooklyn, New York 11234 and at the time of this incident resided at the abovementioned location.
7. Defendant City of New York (hereinafter referred to as "City") was and is a Municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
8. Defendant City maintains the New York City Police Department (hereinafter referred to as "NYPD"), a duly authorized public authority and/or police department, authorized to perform all functions of a police department as per the applicable sections of the aforementioned municipal corporation, City of New York.
9. That at all times hereinafter mentioned, Police Officers Kenneth Gorman, Jason Lee Tax ID# 958804, Singh Tax ID# 9677342, Gill, John Doe, Jim Doe, and Sgt James Doe (hereinafter referred to collectively as "Officers") were duly sworn police officers of the

New York City Police Department and were acting under the supervision of said department and according to their official duties, prior to August 28, 2020; on August 28, 2020 and thereafter.

10. Upon information and belief and at all times hereinafter mentioned, the Defendant Officers are/were all assigned to the NYPD Transit Bureau District 1.
11. That at all times hereinafter mentioned the Defendant Officers, either personally or through their employees, were acting under the color of state law and/or in compliance with the official rules, regulations, laws, statutes, custom/usages, patrol guidelines and/or practices of the State of New York and/or the City of New York, prior to August 28, 2020, on August 28, 2020 and thereafter.
12. Each and all of the acts of the Defendants alleged herein were done by Defendants while acting within the scope of their employment by Defendant City.
13. All aforementioned conduct was committed by the City of New York, their agents, servants or employees, while acting in the scope of their employment.
14. At all relevant times herein, Captain Kenneth Gorman, Jason Lee, Singh, Gill, John Doe, Jim Doe and Sgt. James Doe were present, assisted and/or witnessed said conduct and failed to intervene, stop, or mitigate it.
15. Plaintiff was falsely charged with the crimes of Disorderly Conduct; amid one other charge.
16. The Desk Appearance Ticket (DAT) was issued by Captain Kenneth Gorman; Jason Lee; Singh, Gill; John Doe; Jim Doe; and Sgt. James Doe for the purpose of prosecuting Plaintiff.
17. The DAT contained false statements by Captain Kenneth Gorman, Jason Lee, Singh, Gill, John Doe, Jim Doe and Sgt. James Doe. Plaintiff was forced to retain an Attorney for which all charges were dismissed in Transit and Criminal Court.
18. That notice of the Plaintiff's claim and notice of intention to sue for damages which set

forth the nature of the claim, the date of, the time when, the place where and the manner in which the claim arose were duly served upon the Comptroller of the Defendant “City” and the Corporation Counsel of the City of New York. Said Notice included a Notice to Preserve Evidence.

19. The oral examination of Plaintiff Kevin Carlton was conducted on February 18, 2021 in accordance with Section 50-H of the General Municipal law.
20. That more than thirty (30) days have elapsed since the Notice of Claim and intention to sue has been served upon the Defendants, and the said Defendants have neglected and/or refused to make any adjustment or payment thereof.
21. That the action is commenced within one year and 90 days after the cause of action arose.
22. It is hereby alleged, pursuant to CPLR 1603, that the action is exempt from the operation of CPLR §1601 from the operation of CPLR §1601, by reason of one or more of the exemptions provided in CPLR §1602.

FACTS

23. On August 28, 2020, at approximately 10:00 p.m. the Plaintiff, with a friend, was lawfully at the location of 59th Street/Columbus Circle Train Station, New York, within the State of New York conversing with said friend as they waited for the train on the downtown platform.
24. As they waited, a white male began to stare at them while on his cell phone. Said white male was later determined to be an off-duty police officer. When the train stopped at the station, the Plaintiff and friend (Xavier), entered the train whereupon two African American officers/defendants followed. One officer held the train door as the other officer asked the Plaintiff to step out of the train. Plaintiff responded by asking why he had to step out of the train.
25. Plaintiff further stated that he did not commit a crime and inquired as to what was the Defendants’ reasonable suspicion to think he had or was going to commit a crime. The

Defendants did not respond to the Plaintiff's question and/or statement.

26. The Defendants asked again for the Plaintiff to step out of the train for which the Plaintiff repeated his statement/question but again received no reply. Plaintiff referred the Defendants to his clergy shield which was located on his belt, clipped on and visible, as he repeated that he did nothing wrong.
27. During this time, the Plaintiff was held in an illegal police chokehold. The unknown Defendant Officer eventually loosened his grip of the Plaintiff's neck/throat area as other Defendants loosened their grip on his arms and he was then handcuffed.
28. At this time, passengers were videotaping and yelling "He did not do anything, leave him alone". Also, Xavier (friend) was observing the events as they occurred. Plaintiff volunteered that he was an Israelite and according to the strict reading of the Bible he is allowed to walk with a staff.
29. As the Plaintiff stood handcuffed, he asked Xavier to read the Gospel according to Marc for which Xavier did in support of establishing that people of God walk with a staff. The Defendants did not reply. Plaintiff again asked why he was being arrested and was then told by a Sergeant "they would figure this out". At no time did the Plaintiff resist being handcuffed, detained and/or arrested.
30. Defendants transported the Plaintiff to a police precinct within the 59th Street train station (believed to be the NYPD Transit Bureau District 1) where he was illegally searched, religious garb was removed and his clergy shield was confiscated. Plaintiff was not in possession of any illegal contraband. Plaintiff was held on the train platform for approximately 20 minutes while handcuffed before being transported to the police station for which he was held approximately 2 hours before being released with Desk Appearance Tickets (DAT).
31. As a result of the Defendants' misconduct, the Plaintiff suffered torn ligaments in his finger and had to seek medical treatment for which he was required to wear a splint. Additionally, the Plaintiff sought a medical provider for the mental and emotional pain suffered as a result of this negative encounter. During the entire encounter, none of the

Defendant Officers were wearing masks to protect the Plaintiff from contracting COVID-19 and the Defendants removed the Plaintiff's mask while he was being detained.

32. The arrest, imprisonment, and the physical contact were all without just cause, provocation, and said actions were offensive to the Plaintiff, unprivileged and without his consent. The Plaintiff was maliciously prosecuted in Transit Court and Criminal Court as his cases were dismissed.
33. Defendant Officers John Doe and Jim Doe did not at any time intervene in the illegal detention, arrest, search and seizure of the Plaintiff.
34. The detention, arrest, imprisonment, search and seizure were all without just cause, provocation, and said actions were excessive, offensive to the Plaintiff, unprivileged and without his consent.
35. All the above occurred as a direct result of the unconstitutional policies, customs and/or practices of the City of New York, including, without limitation, the inadequate screening, hiring, retaining, training, supervising of its employees and the deliberate indifference as to punishment for misconduct against Kevin Carlton.
36. As a result of the foregoing, Kevin Carlton sustained pain in his finger and wrists as well as emotional distress, embarrassment, humiliation and deprivation of his Constitutional Rights.
37. All aforementioned conduct was committed by the City of New York, their agents, servants or employees, while acting within the scope of their employment.
38. The City of New York, their agents, servants or employees intended to confine the Plaintiff; the Plaintiff was conscious of said confinement and did not consent thereto, and the confinement was not otherwise privileged, all without just right, probable cause and without grounds, therefore.

AS AND FOR A FIRST CAUSE OF ACTION
PURSUANT TO NEW YORK CONSTITUTION
ARTICLE I SECTION 11

39. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs “1” through “38” with the same force and effect as if fully set forth herein.
40. By the aforesaid acts, Defendants have violated the Plaintiff’s right to the equal protection laws under Article I §11 of the New York State Constitution, thereby giving rise to a cause of action pursuant to said Article.
41. The conduct and actions of the named Defendant Police Officers, and Defendant City, acting under the color of law in falsely detaining, arresting, imprisoning, battering, assaulting and conspiring against the Plaintiff was done intentionally, maliciously and/or with a reckless disregard for the natural probable consequences of their acts; was done without lawful justification; was designed to and did cause specific and serious bodily, mental and emotional harm, pain and suffering in violation of the Plaintiff’s Constitutional rights as guaranteed under law and the Constitution of the State of New York. The above described actions and omissions engaged in under the color of state law by the named Defendant Police Officers and Defendant City, sued as a person within the meaning of Article I §11, deprived the Plaintiff of rights, including but not limited to, his rights under Article I §§ 8 and 9 guaranteeing freedom of expression and association, Article I §12 guaranteeing protection against unlawful seizure of his person, Article I §11 guaranteeing due process and equal protection under the law, and Article I §5 guaranteeing protection from cruel and unusual punishment.
42. By reason of the Constitutional violations by the Defendants, Plaintiff has been damaged as set forth above.

AS AND FOR A SECOND CAUSE OF ACTION FOR
NEGLIGENT HIRING, TRAINING AND SUPERVISION

43. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs “1” through “42” with the same force and effect as if fully set forth herein.

44. The above-described injuries suffered by the Plaintiff is the proximate result of the negligence of the Defendant NYPD, in that the Defendant City and the NYPD failed to exercise reasonable care in the hiring, employment, supervision and training of its employees.
45. The Defendant City and the NYPD had, or should have had, knowledge of the vicious and violent tendencies of its employees, including all of the named Defendant Police Officers.
46. Defendant City and the NYPD knew or should have known of the unlawful actions of the named Defendant Police Officers through actual and constructive notice of their unlawful activities, including but not limited to those allegations as set forth in the preceding paragraphs above. Defendants City and NYPD failed to exercise reasonable care by retaining and not terminating the employment of the named Police Officer Defendants or taking other appropriate action. The occurrence complained of herein was due to the negligence and recklessness of the Defendants City and NYPD.
47. By reason of the Constitutional violations by the Defendants, Plaintiff has been damaged as set forth above.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
FALSE DETENTION/ FALSE IMPRISONMENT**

48. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "47" with the same force and effect as if fully set forth herein.
49. By the aforesaid acts, Defendants unlawfully and unjustifiably detained the Plaintiff without any lawful cause whatsoever. Defendants acted willfully, unlawfully, maliciously, recklessly and negligently in detaining and arresting the Plaintiff despite the Plaintiff's innocence and utilized their power and authority to illegally seize and/or search the Plaintiff as well as to cover-up their own wrongful conduct. The Defendants illegally seized the Plaintiff's person by not allowing him to exercise his right to liberty when no probable cause existed to detain the Plaintiff.

50. The Defendants' tortuous conduct as set forth above directly resulted in the Plaintiff being wrongfully detained and arrested.

51. By reason of the Constitutional violations by Defendants, Plaintiff has been damaged as set forth above.

**AS AND FOR A FOURTH CAUSE OF
ACTION FOR FALSE ARREST**

52. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "51" with the same force and effect as if fully set forth herein.

53. By the aforesaid acts, the Defendants unlawfully and unjustifiably arrested Plaintiff without any lawful cause whatsoever. The Defendants acted willfully, unlawfully, maliciously, recklessly and negligently in detaining and arresting the Plaintiff despite the Plaintiff's innocence and utilized its power and authority to illegally seize and/or search the Plaintiff as well as to cover-up their own wrongful conduct. The Defendants illegally seized the Plaintiff's person by detaining, handcuffing, arresting and imprisoning the Plaintiff by not allowing him to exercise his right to liberty when no probable cause existed to arrest the Plaintiff.

54. The Defendants' tortuous conduct as set forth above herein directly resulted in the Plaintiff being wrongfully arrested.

55. By reason of the Constitutional violations by Defendants, the Plaintiff has been damaged as set forth above.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
PRIMA FACIE TORT**

56. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "55" with the same force and effect as if fully set forth herein.

57. In falsely detaining, arresting, imprisoning, fabricating, conspiring against the Plaintiff, and maliciously prosecuting the Plaintiff, Defendants acted with malicious intent, recklessness and negligence to injure and harm the Plaintiff.
58. By reason of the tortuous conduct of the Defendants, the Plaintiff has been damaged as set forth above.
59. For all claims under New York State Law, Defendants are jointly and severally liable to the Plaintiff inasmuch as this action arises out of the exceptions set forth in Section 1602 subdivisions 5, 7 and 11 of the Civil Practice Law and Rules.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
ASSAULT AND BATTERY**

60. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs “1” through “59” with the same force and effect as if fully set forth herein.
61. By the aforesaid acts, Defendants have caused physical harm and injury upon the Plaintiff’s person. Defendants acted willfully, unlawfully, maliciously, recklessly, unjustifiably, negligently, in the abuse of power and authority and used excessive force which resulted in the Plaintiff being seized by the Defendants who illegally detained the Plaintiff, handcuffed the Plaintiff, and transported the Plaintiff to the NYPD Transit Bureau, District 1. As a result of the Defendants’ actions, the Plaintiff suffered damage to his wrists, neck and back from torn ligaments to nerve damage and is still seeking therapy, medical treatments and possible surgery.
62. By reason of the Constitutional violations by the Defendants, the Plaintiff has been damaged as set forth above.

**AS AND FOR A SEVENTH CAUSE OF ACTION
FOR CONSPIRACY AND FABRICATION OF EVIDENCE**

63. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs “1” through “62” with the same force and effect as if fully set forth herein.

64. The named Police Officer Defendants did knowingly and intentionally agree and/or otherwise conspire to provide false evidence against the Plaintiff to cover-up their wrongdoing of falsely detaining, arresting, imprisoning, battering, assaulting, searching and illegally seizing the Plaintiff by the aforementioned omissions.

65. The Defendants' tortuous conduct caused the Plaintiff to suffer severe emotional distress and thus, the Plaintiff has been damaged as set forth above.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
MALICIOUS PROSECUTION**

66. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "65" with the same force and effect as if fully set forth herein.

67. That Police Officers Kenneth Gorman, Jason Lee Tax ID# 958804, Singh Tax ID# 9677342, Gill, John Doe, Jim Doe and Sgt. James Doe as agents, servants and/or employees of the City of New York, maliciously prosecuted Kevin Carlton for crimes that they knew he did not commit, and/or that were based on an illegal seizure of his person and issuing of DATs based on fabrications.

68. That as a result of the said malicious prosecution, the Plaintiff was caused to attend Transit and Criminal Courts, respectively to defend the false charges prior to said charges being dismissed.

69. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court.

**AS AND FOR A NINTH CAUSE OF ACTION FOR
EXCESSIVE FORCE**

70. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "69" with the same force and effect as if fully set forth herein.

71. That Police Officers Kenneth Gorman, Jason Lee Tax ID# 958804, Singh Tax ID#

9677342, Gill, John Doe, Jim Doe and Sgt. James Doe as agents, servants and/or employees of the City of New York, maliciously used excessive force in arresting the Plaintiff.

72. Defendants physically abused the Plaintiff by forcibly grabbing, choking, and forcibly twisting the Plaintiff's arms and hands. Defendants' exercise of excessive force resulted in a torn ligament to Plaintiff's pinky finger and bruising to his wrists due to the tightness of the handcuffs.

73. As a result of the Defendants' misconduct, the Plaintiff sought medical treatment for his physical injuries as well mental health treatment.

74. That by reason of the aforesaid, the Plaintiff has been damaged in a sum exceeding the jurisdictional limits of the lower court.

WHEREFORE, the Plaintiff, Kevin Carlton, respectfully requests judgment upon all causes of action against Defendants as follows:

1. With respect to Defendant City of New York and New York City Police Department:

- (a) Declaratory judgment declaring that Defendant City and NYPD has violated the aforesaid statutes and constitutions;
- (b) Restitution to Plaintiff of his rights, privileges, benefits and income which would have been received by him but for the Defendants unlawful, wrongful, tortuous, and unconstitutional conduct;
- (c) Compensatory damages in an amount to be determined by the court and jury;
- (d) Punitive damages in the amount to be determined by the court and jury;
- (e) All legal and statutory interest on sums awarded;
- (f) Such other and further relief as this honorable court may deem just, proper and equitable.

2. With respect to each Police Officer Defendants:

- (a) Declaratory judgment declaring that the Defendants have violated the aforesaid statutes and constitutions;
- (b) Restitution to the Plaintiff of his rights, privileges, benefits and income which would have been received by him but for Defendants' unlawful, wrongful, tortuous, and unconstitutional conduct;
- (c) Compensatory damages in an amount to be determined by the court and jury;
- (d) Punitive damages in an amount to be determined by the court and jury;
- (e) All legal and statutory interest on sums awarded.

FEDERAL CLAIMS

AS AND FOR A TENTH CAUSE OF ACTION
(Deprivation of Rights Under 42 U.S.C. §§1981 and 1983)

75. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "74" with the same force and effect as if fully set forth herein.
76. All of the aforementioned acts of Defendants, their agents, servants and employees were carried out under the color of state law.
77. All of the aforementioned acts deprived the Plaintiff, Kevin Carlton of his rights, privileges and immunities guaranteed to him as a citizen of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. §§1981 and 1983.
78. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers with the entire, actual and/or apparent authority attendant thereto and with the intent to discriminate on the basis of gender.

79. The Defendants herein battered, and assaulted the Plaintiff more specifically touched the Plaintiff's body without his consent.
80. Defendants battered, and assaulted Kevin Carlton by handcuffing the Plaintiff's wrists causing damage to his finger, wrists, and neck as he suffered torn ligaments to his pinky, all causing physical injury.
81. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.
82. Defendants, collectively and individually, while acting under the color of state law, engaged in conduct that constituted a custom, usage, practice, procedure and/or rule of the respective municipality/authority which is forbidden by the Constitution of the United States.
83. As a result of the foregoing, Plaintiff, Kevin Carlton, is entitled to compensatory damages in an amount to be fixed by a jury and is further entitled to punitive damages against the individuals in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR AN ELEVENTH CAUSE OF ACTION
(False Detention/ False Arrest/ Unlawful Imprisonment under 42 U.S.C. § 1983)

84. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "83" with the same force and effect as if fully set forth herein.
85. Defendants did falsely detain the Plaintiff, Kevin Carlton, and falsely arrested the Plaintiff without Probable Cause, causing him to be detained against his will for an extended period of time and subjected to physical restraint.
86. Defendants' false detention, arrest, and illegal search of the Plaintiff, Kevin Carlton, was

without Probable Cause and said misconduct was malicious in nature.

87. As a result of the foregoing, Plaintiff, Kevin Carlton, is entitled to compensatory damages in an amount to be fixed by a jury and is further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A TWELFTH CAUSE OF ACTION
(Malicious Abuse of Process and Authority under 42 U.S.C. § 1983)

88. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "87" with the same force and effect as if fully set forth herein.
89. Defendants issued criminal process against the Plaintiff, Kevin Carlton, by detaining, and illegally searching the Plaintiff, as they acted under the color of law.
90. Defendants' actions were an abuse of authority given they had no Probable Cause to detain, seize and/or search the Plaintiff, Kevin Carlton.
91. As a result of the foregoing, Plaintiff, Kevin Carlton, is entitled to compensatory damages in an amount to be fixed by a jury and is further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
(Violation of the Equal Protection Clause under 42 U.S.C. § 1983)

92. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "91" with the same force and effect as if fully set forth herein.
93. Plaintiff, Kevin Carlton, was falsely detained, arrested and physically restrained. During this physical restraint, Kevin Carlton, was seized forcibly handcuffed, as well as searched,

battered, assaulted, falsely detained, arrested and subjected to excessive force.

94. The physical restraint and public search as to the Plaintiff, Kevin Carlton, was based on his race as an African-American male, his age and gender, and the failure to intervene to prevent such treatment committed by the named Defendants were also based on the above mentioned.

95. The battery, assault and false detention/arrest committed on Kevin Carlton were based on him being an African-American male, his age and gender. But for the aforementioned, Kevin Carlton would not have been physically restrained or searched.

96. Moreover, the failure to intervene by other unknown officers present, as to said battery, assault and search was founded on the above cited factors.

97. The Defendants' false detention and arrest of Kevin Carlton as well as the named Defendants' failure to intervene as to this misconduct was based on the Plaintiff's Nationality, Race, Gender, and Age.

98. As a result of the foregoing, the Plaintiff, Kevin Carlton, was deprived of his rights under the Equal Protection Clause of the United States Constitution.

99. As a result of the foregoing, the Plaintiff, Kevin Carlton, is entitled to compensatory damages in an amount to be fixed by a jury and is further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A FOURTEENTH CAUSE OF ACTION
(Deprivation of Substantive Due Process under 42 U.S.C. § 1983)

100. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "99" with the same force and effect as if fully set forth herein.

101. The Defendants' conduct herein was an abuse of executive power so clearly unjustified by any legitimate objective of law enforcement as to be barred by the Fourteenth Amendment.

102.As a result of the foregoing, the Plaintiff, Kevin Carlton, was deprived of his liberty and right to substantive due process, causing emotional injuries.

103.As a result of the foregoing, the Plaintiff, Kevin Carlton is entitled to compensatory damages in an amount to be fixed by a jury and is further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A FIFTEENTH CAUSE OF ACTION
(Failure to Intervene under 42 U.S.C. § 1983)

104.Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs "1" through "103" with the same force and effect as if fully set forth herein.

105.Defendants had an affirmative duty to intervene on behalf of the Plaintiff, Kevin Carlton whose constitutional rights were being violated in his presence by other officers.

106.The Defendants failed to intervene to prevent the unlawful conduct described herein.

107.As a result of the foregoing, the Plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subjected to other physical restraints.

108.As a result of the foregoing, the Plaintiff, Kevin Carlton, is entitled to compensatory damages in an amount to be fixed by a jury and is further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

AS AND FOR A SIXTEENTH CAUSE OF ACTION
(Supervisory Liability under 42 U.S.C. § 1983)

109. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs “1” through “108” with the same force and effect as if fully set forth herein.
110. The supervisory defendants personally caused the Plaintiff’s constitutional injury by being deliberately or consciously indifferent to the rights of others in failing to properly supervise, train and/or discipline their subordinate employees.
111. As a result of the foregoing, the Plaintiff, Kevin Carlton, is entitled to compensatory damages in an amount to be fixed by a jury and is further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorney’s fees, costs and disbursements of this action.
112. The foregoing customs, policies, usages, practices, procedures, deliberate indifferences to discipline and rules of the City of New York and the New York City Police Department were direct and proximate cause of the constitutional violations suffered by the Plaintiff, Kevin Carlton, as alleged herein.
113. The foregoing customs, policies, usages, practices, procedures, deliberate indifferences to discipline and rules of the City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by the Plaintiff, Kevin Carlton, as alleged herein.
114. As a result of the foregoing customs, policies, usages, practices, procedures, deliberate indifference as to discipline and rules of the City of New York and the New York City Police Department, the Plaintiff was unlawfully detained, arrested, battered, assaulted and searched.
115. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the Plaintiff’s constitutional rights.
116. All of the foregoing acts by the Defendants deprived the Plaintiff of federally protected

rights, including, but not limited to the right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from false detention, false arrest and unlawful imprisonment;
- C. To be free from the failure to intervene;
- D. To be free from malicious prosecution;
- E. To be free from malicious abuse of process; and excessive force, battery and assault;
- F. To receive equal protection under the law.

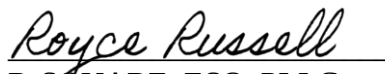
117. As a result of the foregoing, the Plaintiff, Kevin Carlton, is entitled to compensatory damages in an amount to be fixed by a jury and is further entitled to punitive damages against the individual Defendants in an amount to be fixed by a jury, plus reasonable attorney's fees, costs and disbursements of this action.

WHEREFORE, the Plaintiff, Kevin Carlton, demands judgment and prays for the following relief jointly and severally, against the Defendants as follows:

- 1. Full and fair compensatory damages in an amount to be determined by a jury;
- 2. Punitive damages in an amount to be determined by a jury;
- 3. Reasonable attorney's fees and the costs and disbursements of this action; and
- 4. Such other and further relief as appears just and proper.

Dated: New York, New York

August 13, 2021


R-SQUARE, ESQ. PLLC.
Royce Russell, Esq.
Attorney for Plaintiff
112 West 34th St. #18 Fl.
New York, New York 10120
(718) 785-8890

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

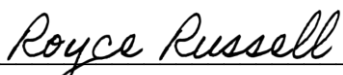
That I am an attorney associated with the law firm of R-SQUARE, ESQ. PLLC., the attorneys of record for the Plaintiff in the within action; that I have read the foregoing Summons and Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Summons and Verified Complaint is made by me and not by the Plaintiff is that the Plaintiff does not reside in the County where the undersigned maintains an office.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
August 13, 2021


By: Royce Russell, Esq.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

KEVIN CARLTON,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, CAPTAIN KENNETH GORMAN, POLICE OFFICER JASON LEE, TAX ID 958804, POLICE OFFICER SINGH, TAX ID 967342, POLICE OFFICER GILL, AND SGT. JAMES DOE, POLICE OFFICERS JOHN DOE AND JIM DOE (FICTITIOUS NAMES BECAUSE THEIR IDENTITIES ARE UNKNOWN), ALL OFFICERS BELIEVED TO BE FROM THE NYPD TRANSIT BUREAU DISTRICT 1, BEING SUED AS POLICE OFFICERS AND IN THEIR INDIVIDUAL CAPACITIES,

Defendants.

SUMMONS WITH VERIFIED COMPLAINT

R-SQUARE, ESQ. PLLC.
Attorney for Plaintiff
112 West 34TH Street Fl. 18
New York, NY 10120
(718) 785-8890

To:	City of New York c/o Office of the Corporation Counsel 100 Church Street New York, NY 10007	Captain Kenneth Gorman c/o NYPD Transit Bureau District 1 59th Street/Columbus Circle Subway Station New York, NY 10019	Police Officer Jason Lee Tax ID 958804 c/o NYPD Transit Bureau District 1 59th Street/Columbus Circle Subway Station New York, NY 10019
	The New York City Police Department 1 Police Plaza New York, New York 10007	Police Officer Singh Tax ID 967342 c/o NYPD Transit Bureau District 1 59th Street/Columbus Circle Subway Station New York, NY 10019	Police Officer Gill c/o NYPD Transit Bureau District 1 59th Street/Columbus Circle Subway Station New York, NY 10019
	Sgt. James Doe Identity & Address Unknown	Police Officers John Doe Identity & Address Unknown	Police Officer Jim Doe Identity & Address Unknown

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: August 13, 2021

Signature

Royce Russell
Royce Russell, Esq.

=====

PLEASE TAKE NOTICE

- ☐ NOTICE OF ENTRY
that the within is a (certified) true copy of a duly entered in the office of the
clerk of the within named court on
- ☐ NOTICE OF SETTLEMENT
that a of which the within is a true copy
will be presented for settlement to the HON. one of the judges of the, on